

24STCV13200 24STCV13200

County: los-angeles

Division: Civil Law and Motion

Department: 11

Hearing date: 2026-07-15

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C11%2C07%2F15%2F2026

Source SHA-256: c18f0b3aa61ab45b68ff08ca0c4d00164dd011650592ab10ec850db160bc2a50

Case Number: 24STCV13200 Hearing Date: July 15, 2026 Dept: 11

Lopez

(24STCV13200)

Tentative Ruling Re:

Motion to Compel Deposition of Person Most Knowledgeable ("PMK")

Date: 7/15/26

Time: 11:00 am

Moving

Party: C-Jose Tovar Lopez and

Eleodoro Ochoa (collectively "Plaintiffs")

Opposing

Party: Precision Wire Products,

Inc. ("Defendant")

Department: 11

Judge: Bruce G. Iwasaki

TENTATIVE RULING

Plaintiffs' motion to compel deposition of PMK is

moot in part, granted in part, and denied in part. The Court orders Defendant to pay a monetary

sanction in the amount of \$3,260.00
to Plaintiffs.

BACKGROUND

This is a wage-and-hour action.

Here, Plaintiffs move to compel the deposition of Defendant's
PMK.

APPLICABLE LAW

The
Discovery Act permits depositions of PMKs of corporations, partnerships,
government agencies, etc. (See Weil
& Brown, Cal. Practice Guide: Civ. Procedure Before Trial (The Rutter Group
2025) ¶ 8:468.) The “deposition notice
or subpoena . . . must ‘describe with reasonable particularity the
matters on which the examination is requested.’” (Id. at ¶ 8:471.) If the notice or subpoena “describes the
matters . . . ‘with reasonable particularity,’” the entity must prepare and
produce a PMK “to testify on its behalf.”
(Id. at ¶ 8:473.) A motion
to compel the entity to designate a PMK is authorized if the entity fails to
comply. (See id. at ¶ 8:476.)

DISCUSSION

Arguments

Plaintiffs

Plaintiffs
contend the motion to compel should be granted because:

*

Judge David S. Cunningham III, now retired, ordered Defendant to produce its
PMK for deposition “no later than October 24, 2025” (9/24/25 Minute Order, p.
1);

*

Defendant did not produce the PMK by October 24th and still had not produced the PMK as of March 6, 2026, the filing date of the motion to compel (see Motion to Compel, pp. 1-3);

*

Defendant lacks a reasonable excuse for failing to produce the PMK (see id. at pp. 4-5); and

*

Defendant's failure to produce the PMK constitutes contempt. (See id. at p. 5.)

As

punishment, Plaintiff requests two monetary sanctions – a \$3,260.00 sanction for fees and costs related to the motion to compel and a \$1,000.00 sanction to be paid to the Court. (See id. at pp. 5-6; see also Reply, pp. 2-3 [arguing that sanctions should be imposed because “Defendant has provided no justification for disobeying the Court’s September 24, 2025 Order and provided no justification as to producing the PMK for deposition nine months after being properly served with the deposition notice, six months after the deadline the Court ordered, and after Plaintiffs brought this Motion”].)

Defendant

Defendant

claims the motion to compel is moot.

After Plaintiffs filed the motion, the parties participated in a second discovery conference and executed a stipulation.

Per the stipulation, Defendant produced the PMK on April 22, 2026. Defendant represents that the PMK deposition is finished. (See Opposition, p. 2.)

Moreover,

Defendant insists that “any sanctions sought by Plaintiff[s] . . . are unwarranted and unnecessary.” (Ibid.)

Analysis

Monetary sanctions under the Discovery Act

Given

that the PMK deposition finally took place in April 2026, the compel portion of the motion to compel is moot.

But

the sanctions portion is not moot and is granted in part. Plaintiffs' counsel's declarations chronicle the extensive efforts to secure the PMK deposition. (See Le Decl., ¶¶ 2-17; see also Le Reply Decl., ¶¶ 2-10.) Defendant offers no evidence to contradict Plaintiff's description, and no explanation for its dilatory conduct. Defendant missed the October 24th deadline by approximately six months. A second discovery conference had to be held. The stipulation did not materialize until after the second discovery conference and more than a month after Plaintiffs filed the motion to compel. These factors support imposition of a monetary sanction pursuant to subdivisions (a), (g), and (h) of Code of Civil Procedure section 2025.450.[1]

The

court has authority to order monetary sanctions when a motion to compel was required to secure compliance. (See *Sinaiko Healthcare Consulting v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 405-408 [defendant's untimely interrogatory responses did not divest court of authority to award monetary sanctions].) If the court lacked such authority, parties would have little incentive to respond to discovery in a timely fashion. Defendants offer no authority to the contrary.

The

requested amount of sanctions – \$3,260.00 – is reasonable (see Le Decl., ¶ 19) and shall be paid by Defendant to Plaintiff's counsel on or before July 22, 2026.

Contempt

Which

brings the Court to Plaintiffs' request for a \$1,000.00 contempt sanction. "Contempt is any act, in or out of court, 'which tends to impede, embarrass or obstruct the court in the discharge of its duties.'" (Fairbank, et al., Cal. Practice Guide: Civ. Trials and Evidence (The Rutter Group 2025) ¶ 12:404.)

Code of Civil

Procedure section 1209(a) enumerates numerous acts that qualify as contempt:

- (1) Disorderly, contemptuous, or insolent behavior toward the judge while holding the court, tending to interrupt the due course of a trial or other judicial proceeding.
- (2) A breach of the peace, boisterous conduct, or violent disturbance, tending to interrupt the due course of a trial or other judicial proceeding.
- (3) Misbehavior in office, or other willful neglect or violation of duty by an attorney, counsel, clerk, sheriff, coroner, or other person, appointed or elected to perform a judicial or ministerial service.
- (4) Abuse of the process or proceedings of the court, or falsely pretending to act under authority of an order or process of the court.
- (5) Disobedience of any lawful judgment, order, or process of the court.
- (6) Willful disobedience by a juror of a court admonishment related to the prohibition on any form of communication or research about the case, including all forms of electronic or wireless communication or research.
- (7) Rescuing any person or property in the custody of an officer by virtue of an order or process of that court.
- (8) Unlawfully detaining a witness or party to an action while going to, remaining at, or returning from the court where the action is on the calendar for trial.
- (9) Any other unlawful interference with the process or proceedings of a court.
- (10) Disobedience of a subpoena

duly served, or refusing to be sworn or answer as a witness.

(11) When summoned as a juror in a court, neglecting to attend or serve as a juror, or improperly conversing with a party to an action to be tried at the court, or with any other person, in relation to the merits of the action, or receiving a communication from a party or other person in respect to the action, without immediately disclosing the communication to the court.

(12) Disobedience by an inferior tribunal or judicial officer of the lawful judgment, order, or process of a superior court, or proceeding in an action or special proceeding contrary to law, after the action or special proceeding is removed from the jurisdiction of the inferior tribunal or judicial officer.

(Cal. Code Civ. Proc. § 1209, subd.

(a), emphasis added.)

“Any

person” – attorneys, witnesses, parties, employees and agents of parties, and officers and directors of entity parties – “who commits a contemptuous act [citation] may be punished for contempt.”

(Fairbank, *supra*, at ¶ 12:407; see also *id.* at ¶¶ 12:408-12:413.)

“In

view of the potential for imprisonment, civil contempt proceedings are quasi-criminal in nature.” (*Id.* at 12:414,

emphasis in original.) “Because the proceedings are quasi-criminal, the accused possesses ‘some of the rights of a criminal defendant.’” (*Id.* at ¶ 12:414.1.)

“The

procedure required for adjudication of contempt depends on the nature of the contempt[.]” (*Id.* at ¶ 12:415.) “An ‘indirect contempt’ occurs outside the judge’s presence (e.g., attorney communications with jurors outside court).” (*Id.* at ¶ 12:423,

emphasis added.) “In such cases, due process requires a more elaborate procedure to notify the person so charged and

to allow the person an opportunity to be heard.” (Ibid. [citing *Hanson v. Superior Court* (2001) 91 Cal.App.4th 75, 81].) “In brief, ‘an affidavit must be presented to the court stating the facts constituting the contempt, an order to show cause must be issued, and a hearing on the facts must be held by the judge.’” (Ibid. [quoting *Arthur v. Superior Court* (1965) 62 Cal.2d 404 ,407].)

“Upon

receipt of the affidavit, the court usually issues an order to show cause (OSC)

why the person should not be held in contempt.”

(Id. at ¶ 12:427.)

Notably,

“[i]n indirect contempt proceedings based on disobedience of a prior court

order, a valid judgment must meet ‘strict requirements.’” (Id. at ¶ 12:432.) The following must be shown:

* Facts establishing court's jurisdiction (e.g.,
personal service or subpoena, validity of court order allegedly violated,
etc.);

* Defendant's knowledge of
the order disobeyed;

* Defendant's ability to
comply; and

* Defendant's willful
disobedience of the order.

(Ibid.,
emphasis in original.)

“The

sentence imposed in a civil contempt proceeding may be either ‘coercive’ or ‘punitive[.]’” (Id. at ¶ 12:434.) For a punitive sentence, “[a] person found

guilty of contempt may be fined up to \$1,000, imprisoned for up to five days,

or both, for each separate act of contempt.” (Id. at ¶ 12:439 [citing Code of Civil

Procedure section 1218].) Further, “a

party (or party's agent) found in contempt may be ordered to pay reasonable

attorney fees and costs incurred by the party initiating the contempt proceeding.” (Id. at ¶ 12:443.1.)

Considering

these rules, Plaintiffs' request is denied.

Plaintiffs rely on Code of Civil Procedure sections 1209(a)(5) and 1218(a) (see Motion to Compel, p. 6) yet fail to cite the statutes in

the notice of motion. (See Notice

of Motion, p. 1.) More importantly, Plaintiffs have put the cart before the horse, requesting a sanction before an affidavit was personally served on

Defendant and approved by the Court and before an OSC was set. The consequence of Plaintiffs' out-of-sequence approach is an absence of jurisdiction. (See Cedars-Sinai Imaging Medical Group v. Superior Court (2000) 83 Cal.App.4th 1281, 1286-1287 ["A

contempt proceeding is commenced by the filing of an affidavit and a request for an order to show cause. After notice

to the opposing party's lawyer, the court (if satisfied with the sufficiency of the affidavit) must sign an order to show cause re contempt in which the date and time for a hearing are set forth. The

order to show cause acts as a summons to appear in court on a certain day and,

as its name suggests, to show cause why a certain thing should not be done. Unless the citee has concealed himself from the court, he must be personally served with the affidavit and the order to show cause; otherwise, the court lacks jurisdiction to proceed."],

emphasis in original, citations and footnotes omitted.)

Plaintiff's request for a penalty of contempt is denied.

Conclusion

Defendant

Precision Wire Products shall pay to Plaintiff's counsel the sum of \$3,260.00 as a monetary sanction for discovery abuse on or before July 22, 2026.

Plaintiff

is ordered to give notice.

[1] Subdivisions (a), (g), and (h) state:

(a) If, after service of a

deposition notice, a party to the action or an officer, director, managing

agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid

objection under Section 2025.410, fails to appear for examination, or

to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

* * *

(g)(1) If a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

(2) On motion of any other party who, in person or by attorney, attended at the time and place specified in the deposition notice in the expectation that the deponent's testimony would be taken, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of that party and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

(h) If that party or party-affiliated deponent then fails to obey an order compelling attendance, testimony, and production, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010) against that party deponent or against the party with whom the deponent is affiliated. In lieu of, or in addition to, this sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against that deponent or against the party with whom that party deponent is affiliated, and in favor of any party who, in person or by attorney, attended in the expectation that the deponent's testimony would be taken pursuant to that order.

(Cal. Code Civ. Proc. § 2025.450, subds. (a), (g)-(h).)